

I assent.

(L.S.)

**MYRIAM SPITERI DEBONO**  
**President**

24th July, 2025

**ACT No. XXI of 2025**

*AN ACT to amend the Maltese Citizenship Act, Cap. 188.*

BE IT ENACTED by the President, by and with the advice and consent of the House of Representatives, in this present Parliament assembled, and by the authority of the same, as follows:-

Short title.

Cap. 188.

Amendment of  
article 2 of the  
principal Act.

Amendment of  
article 3 of the  
principal Act.

**1.** The short title of this Act is the Maltese Citizenship (Amendment) Act, 2025 and this Act shall be read and construed as one with the Maltese Citizenship Act, hereinafter referred to as the "principal Act".

**2.** In article 2 of the principal Act the definition "individual investor programme" shall be deleted.

**3.** Article 3 of the principal Act shall be amended as follows:

(a) in sub-article (4) thereof the words "1st August 2007" shall be substituted by the words "1st August 2028";

(b) in sub-article (5) thereof the words "1st August 2007" shall be substituted by the words "1st August 2028" and the words "1st August 2010" shall be substituted by the words "1st August 2028";

(c) in sub-article (6) thereof the words "31st July, 2010"

shall be substituted by the words "1st August 2028".

4. Article 5 of the principal Act shall be amended as follows:

Amendment of  
article 5 of the  
principal Act.

(a) in sub-article (4) thereof the words "1st August 2007" shall be substituted by the words "1st August 2028";

(b) in sub-article (5) thereof the words "1st August 2007" shall be substituted by the words "1st August 2028" and the words "1st August 2010" shall be substituted by the words "1st August 2028";

(c) in sub-article (6) thereof the words "1st August 2007" shall be substituted by the words "1st August 2028";

(d) in sub-article (7) thereof the words "31st July, 2010" shall be substituted by the words "1st August 2028".

5. Sub-article (9) of article 10 of the principal Act shall be substituted by the following new sub-article:

Amendment of  
article 10 of the  
principal Act.

"(9) Notwithstanding the provisions of this Act or any other Act, the Minister may grant a certificate of naturalisation as a citizen of Malta by merit to an alien or stateless person, namely to a person who renders exceptional services or who makes an exceptional contribution, including through job creation, to the Republic of Malta or to humanity, or whose naturalisation is of exceptional interest to the Republic of Malta:

Provided that for the purposes of this sub-article, "exceptional" means manifestly superior or adding value, and "exceptional services" and "exceptional contributions" shall refer to services rendered and contributions made by scientists, researchers, athletes, sports persons, artists, cultural performers, entrepreneurs, philanthropists and technologists, amongst other persons of interest to the Republic of Malta from time to time, or to humanity and "exceptional interest" shall refer to any person who shall be deemed by the Minister to possess the necessary skills, profile, qualities, talents and expertise that are considered to significantly advance or benefit the national interest of the Republic of Malta:

Provided further that the Minister may also grant a certificate of naturalisation to an eligible dependent of an alien or a stateless person as referred to above:

Provided further that an application is submitted by such person in such manner as may be prescribed and upon

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taking the oath of allegiance in Malta."

Amendment of  
article 17 of the  
principal Act.

**6.** Article 17 of the principal Act shall be amended as follows:

(a) sub-article (1) thereof shall be amended as follows:

(i) in paragraph (b) thereof the words "male adopter; and" shall be substituted by the words "male adopter;"

(ii) in paragraph (c) thereof the words "reference to the adopters." shall be substituted by the words "reference to the adopters; and" and immediately thereafter there shall be added the following new paragraph:

"(d) any reference to the parents of a person who was lawfully adopted on or after the 1st August 2020 and who was on the effective date of his adoption under the age of eighteen (18) years, shall be construed as a reference to the adopters.";

(b) sub-article (2) thereof shall be substituted by the following new sub-article:

"(2) For the purposes of this Act:

(a) the adoption of any person made on or after the 1st January 1977 and before the 1st August 1989 shall be without effect and shall be treated as if it had not been made;

(b) the adoption of any person made on or after the 1st August, 1989 and before the 1st August 2020 who on the effective date of his adoption was ten (10) years or over, shall be without effect and shall be treated as if it had not been made;

(c) an adoption of any person made on or after the 1st August 2020 who on the effective date of his adoption was eighteen (18) years or over, shall be without effect and shall be treated as if it had not been made."

Amendment of  
article 24 of the  
principal Act.

**7.** Paragraph (i) of article 24 of the principal Act shall be deleted.

Amendment of  
article 25 of the  
principal Act.

**8.** Article 25 of the principal Act shall be amended as follows:

(a) sub-article (1) thereof shall be amended as follows:

(i) the words "for exceptional services and the individual investor programme" shall be substituted by the words "in accordance with article 10(9)";

(ii) the words "State Advocate or Permanent Secretary" shall be substituted by the words "State Advocate, Permanent Secretary, Director General or Director of the Public Service";

(b) in sub-article (3) thereof the words "for exceptional services" shall be substituted by the words "in accordance with article 10(9)";

(c) in sub-article (6) thereof the words "through exceptional services" shall be substituted by the words "in accordance with article 10(9)";

(d) in sub-article (8) thereof the words "for exceptional services or the individual investor programme." shall be substituted by the words "in accordance with article 10(9).".

**9.** Article 25A of the principal Act shall be substituted by the following new article:

Substitution of article 25A of the principal Act.

"Investigation of complaints.

25A. (1) The Regulator may also investigate complaints received by the applicant in the prescribed form, about the application process for the granting of Maltese citizenship by naturalisation on the basis of merit, which resulted in the refusal of such application in the manner prescribed under this Act.

(2) The Regulator shall present his conclusions to the Minister."

**10.** In sub-article (1) of article 25B of the principal Act the words "for exceptional services." shall be substituted by the words "on the basis of merit."

Amendment of article 25B of the principal Act.

**11.** Immediately after sub-article (3) of article 27 of the principal Act there shall be added the following new sub-article:

Amendment of article 27 of the principal Act.

"Act No. XXI of 2025.

(4) The Maltese Citizenship (Amendment) Act, 2025 shall not apply in respect of any applications for the granting of Maltese citizenship by naturalisation filed in accordance with article 10(9) of the Act, before the coming into force of this Act, subject to any regulations as may be prescribed under this Act."

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Passed by the House of Representatives at Sitting No. 369 of the  
23rd July, 2025.

ANĠLU FARRUGIA  
*Speaker*

ELEANOR SCERRI  
*Clerk of the House of Representatives*